



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

September 25, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
Medford, MA 02155

Re: Response to Council Resolution No. 26-142B

Dear President Bears and Members of the City Council:

I am writing on Council Resolution No. 26-142B. Below, please find a summary of the communications we have sent in response to this resolution. Based on this information, we respectfully request that the Council approve the attached FY27 Supplemental Appropriation request dated July 30, 2026, to restore the Law Department's budget. Adequate funding for the Law Department is necessary to ensure that the City has sufficient resources to address ongoing legal matters, including litigation, claims, contracts, and other legal obligations that arise in the normal course of City operations. Restoring the requested funding will help ensure that these matters can continue to be handled appropriately and without disruption to City operations.

From 26-142B:

1. **Response to Resolution 26-043** – I believe the Council knows that we reviewed the resolution and much like the public records request (Resolution 26-077), the level of information and granularity requested is a significant challenge considering that information is dispersed across multiple departments and filing systems. My administration repeatedly requested opportunities to discuss the requests, with our initial response to the first resolution dating back to April of 2026 and ultimately we appreciate the Council responding in August with a consolidated version of the collective requests. We believe the Council is intimately aware of the limited resources available throughout the City and we have made our best faith efforts to be responsive to the council's requests, however we have been further challenged with ongoing projects and efforts that draw on City resources (e.g. budget season, School building projects, especially the planning for the new high school, Medford Square development, payroll compliance with the OBBB Act, etc.). We also provided the attached email, which contained an attachment with 74 pages, dated August 1, 2026 regarding the sheer magnitude of Resolution Nos. 26-043 and 26-077.
2. **Independent Review of the City's Litigation Costs** – Please see the attached email, dated August 31st.



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3. **Categorization of the August 4th List of KP Law Expenditures** – Please see the attached email, dated August 31st.
4. **A Similar Report and Categorization of Expenditures for Other Outside Legal Services Provided by Firms other than KP Law Since 2020** – Please see attached email, dated September 14, 2026. In addition, the City also paid Sullivan and Reed, LLP on order of \$63,000 in 2020 and 2021.
5. **Financial Summary of All Settlements or Judgements against the City for claims over \$10k** – The following is a financial summary of what we believe to be all settlements or judgments against the City for claims over \$10,000 since 2020, by the source of funds:
 - a. Building Department Budget - \$28,885
 - b. Clerk's Office Budget – \$48,056
 - c. DPW Appropriation - \$235,000
 - d. Fire Department Budget - \$62,101
 - e. HR Department Budget – \$11,371
 - f. Insurance Budget - \$80,000
 - g. Law Department Budget – \$550,057
 - h. School Department Budgets - \$1,074,501
 - i. Workers' Compensation Budget - \$165,000

Please note that we did not request School settlements between \$10 and \$25k for this exercise. We previously had the amounts from Schools for over \$25k which is how we were able to supply the agreements in June of this year over 5 emails to the Council.

6. **List and Total Estimated Cost of all Budgeted Legal Expenses for the FY27 City budget in Department Budgets** – Please see attached email, dated September 13, 2026.

In summary, my Administration has made a good-faith effort to respond to the requests outlined in Resolution 26-142B and has provided the information available through the City's various departments, records, and financial systems. While we recognize the Council's interest in understanding the City's legal expenditures and obligations, responding to these requests has required a significant amount of staff time and resources across the organization. At the same time, the City continues to manage ongoing legal matters and other obligations that require timely attention and appropriate legal resources. For these reasons, we respectfully request that the Council approve the attached FY27 Supplemental Appropriation to restore the Law Department's budget and ensure that sufficient funding is available to address the City's ongoing legal obligations and maintain the continuity of normal City operations.

Thank you for your kind attention to this matter.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

Sincerely,

A handwritten signature in blue ink, appearing to read "Breanna Lungo-Koehn", is written over the printed name.

Breanna Lungo-Koehn
Mayor



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

July 30, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
85 George P. Hassett Drive
Medford, MA 02155

Re: Supplemental Appropriation for the Fiscal Year 2027

Dear President Bears and Members of the City Council:

I respectfully request and recommend that your Honorable Body approves the following supplemental appropriation for Fiscal Year 2027, to restore the Law Department budget, which was originally proposed in a June 4, 2026 submission to the City Council.

	Mayor Proposed 6/4/26	City Council Cut on 6/23/26
Salaries	\$230,866.60	\$182,576.33
Ordinary	\$298,700.00	\$242,500.00
Total	\$529,566.60	\$425,076.33

And to meet this appropriation, the sum of Four Hundred Twenty-Five Thousand Seventy-Six Dollars and Thirty-Three Cents (\$425,076.33) be raised and appropriated from the Fiscal Year 2026 tax levy.

Over the past several weeks, we have made a thoughtful effort to engage with the Council on this appropriation as well as the provisions of legal documents responsive to your records requests. On May 13th, we responded to the Council's public records request, noting that Item (a) alone, of the nine requested items, would take an estimated 395 hours to review just email records.

On June 16th, we supplied the Council with 130 pages of City-side settlements and School-side settlements between 2020 and the Council's request.

On June 23rd, we provided the spending detail in the Fire Department Professional Services line as well as an outline of other legal expenditures incurred by the City in Fiscal Year 2026 budget. You may recall, I wrote to the full Council on June 3rd offering to discuss the most effective process for providing those materials. My Chief of Staff also requested at both the June 9th and June 23rd Council meetings that the Council designate a member to work with our office on this matter. We unfortunately have yet to receive a response.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

Most recently, on July 23rd, we supplied an updated breakdown of Medford's FY26 budget legal spending compared to other communities and on the same date, I emailed the Council President asking how we can reach an understanding so that my office could begin working a grant agreement to help fund Medford Family Network, begin the recruitment process for a new arts liaison position, and other budget priorities. I have not heard back on this request as of yet.

My administration has consistently sought to engage with the Council in a collaborative and transparent manner, and we remain committed to doing so. However, our repeated requests for coordination and communication with the Council have thus far gone unanswered. It is important that we receive direction and feedback from the Council collectively, or at least from a majority of its members, so that we can be confident we are proceeding in accordance with the Council's expectations and are not expending City staff time and resources pursuing work that may ultimately prove unnecessary or incomplete.

Thank you for your kind attention to this matter.

Sincerely,


Breanna Lungo-Koehn
Mayor

Nina Nazarian

From: Nina Nazarian
Sent: Saturday, August 1, 2026 1:17 PM
To: Breanna Lungo-Koehn
Subject: Claims Paperwork Starting in 2020
Attachments: 2020 Law Dept. Files Batch 1_Redacted.pdf

Dear President Bears and City Councilors,

As an example of the sheer magnitude of the Council's records requests, attached please find 1 of 5 scans completed by Office Manager Spencer this past week for claim files in the Law Department. As you will see in the attached, this file and likely all the files then must undergo a review for redactions (check numbers, account numbers, SSN numbers, etc.). We hope this helps illustrate the significant burden of the voluminous request by the Council.

Please do not hesitate to contact me with any questions.

Sincerely,

Nina

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Nina Nazarian
Chief of Staff | Office of Mayor Breanna Lungo-Koehn
City of Medford
85 George P. Hassett Drive, Medford, MA 02155
781-393-2408
nnazarian@medford-ma.gov
she/her/hers

Please note: The Commonwealth of Massachusetts considers most electronic communications to and from public employees to be public records and disclosable under the Massachusetts Public Records Law and its regulations. *Please consider the environment before printing this email.*

Nina Nazarian

From: Breanna Lungo-Koehn
Sent: Monday, August 31, 2026 10:32 AM
To: City Council; City Council Members
Cc: Nina Nazarian
Subject: Resolution 26-142

President Bears & City Councilors,

I wanted to check in regarding Resolution 26-142.

First, I reached out to the Collins Center, which is the only organization I can think of that may do a litigation review. The Director responded that they have not done a litigation review before and he doesn't think it is something they have expertise in.

Please let me know of a couple companies or organizations who do a litigation review, and we will reach out for quotes as I have no problem doing one. I actually welcome it very much, because after our bond call last week it is even more clear what is going on. They are aware of the publicity this topic has produced and one of the first questions asked to us was if this was "all just noise." They asked that because from their review our liability is low.

It was upsetting that this issue has made its way to the bond rating agencies, which while remote, could jeopardize our rating as we all know how important a good rating is for the projects we are doing and more importantly for the new high school. I let S&P know that these same campaign tactics were used against me in 2021 and are now resurfacing as a personal attack against me to try to ruin my character and question my integrity, while someone positions for the first ever four-year Mayoral term.

The reality is that the same people saying there are too many lawsuits, legal fees and settlements are the very same people who are pushing others to sue (Mike, Mark, SS, etc).

We have provided you with all of the KP law bills and do not have the resources to categorize them, but please feel free to set up a committee to do so.

We will work to gather similar reports from all other outside legal firms since 2020 and send them as soon as we collect them all.

I believe we sent you all settlements and judgements over \$25k and we are now working on a list of all settlements from \$10k – \$25k per your request. We will send those to you asap.

We are going to send the Council all the line items in FY27 within the budget where we may pay for legal services with.

As soon as we receive the full FY27 legal funding we will post for a solicitor and work on the many other things we need continued legal support for such as the grant agreement with MFN, etc.

Please do not hesitate to call me with any questions.

Sincerely,
Mayor Breanna

Nina Nazarian

From: Nina Nazarian
Sent: Monday, September 14, 2026 8:04 PM
To: City Council Members
Cc: Breanna Lungo-Koehn
Subject: Response to Council 26-142B
Attachments: Clifford and Kenny Medford Billing Summary.pdf; Melick & Porter.pdf; O'Hagan Meyer-Fees_and_Expenses 2020-Current City of Medford.pdf; P&A - Medford FY20-FY26.pdf; P&A - Medford -FY14 to FY20.pdf; Seyfarth Shaw.pdf; Binder1_Redacted.pdf

Dear President Bears and City Councilors:

Pursuant to item 4 in 26-142B, attached please find reports and categorizations of expenditures for other outside legal services provided by firms other than KP Law since 2020, on the City side (i.e. this is not a complete picture of all school items billed):

- Clifford and Kenny
- Melick & Porter
- O'Hagan Meyer
- Peabody & Arnold (two reports, one for FY2014 to FY2020 and the other is 2020 and forward. As you can see for comparison, there were more cases prior to 2020. Note that many of the cases on the 2020 to present are Schools and we do not have detailed information on many of those.)
- Seyfarth Shaw

It occurred to me today that we inadvertently did not request a report from Sullivan and Reed LLP for a report, but we continued with the labor counsel that former Mayor Stephanie Burke used. We also paid that firm \$63,000, according to the City's financial software for payments made from January 2020 forward.

We have been working on these responses to the Council's 26-142B paper for the last several weeks, thanks to the clarifications that the Council provided. We believe this is the final piece necessary to complete our response and recognize that the Council may need additional time to review it. Accordingly, unless I hear otherwise, I will plan to be present at the September 29 meeting.

Please consider the impact that these public discussions and correspondence may have on a number of different things, such as our bond rating, party(s) who may be interested in suing, particularly when the Council publicly discloses settlement amounts and the lack of legal support (i.e., the budget available to defend claims from the Council's cuts) without a complete legal understanding of each matter. On many occasions, the Mayor has invited Council members to contact her with any questions, and we continue to extend that invitation on any claim, etc.

We recommend that the names of individuals identified in the attached cases be redacted prior to release. For that reason, I am attaching a single file containing all of the attachments with the names redacted.

Thanks,

Nina

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Nina Nazarian
Chief of Staff | Office of Mayor Breanna Lungo-Koehn
City of Medford
85 George P. Hassett Drive, Medford, MA 02155
781-393-2408
nnazarian@medford-ma.gov
she/her/hers

Please note: The Commonwealth of Massachusetts considers most electronic communications to and from public employees to be public records and disclosable under the Massachusetts Public Records Law and its regulations. *Please consider the environment before printing this email.*

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): 2023 RECOUNT	\$12,093.53	\$12,060.00	\$33.53
Matter Description (First Line): 400 RIVERSIDE (R)	\$3,031.30	\$3,015.65	\$15.65
Matter Description (First Line): 40B	\$4,016.40	\$4,006.50	\$9.90
Matter Description (First Line): ALLSTATE/DILLON V. MEDFORD	\$956.00	\$956.00	\$0.00
Matter Description (First Line): ALLSTATE/SIMPSON V. MEDFORD	\$810.00	\$810.00	\$0.00
Matter Description (First Line): AMATO V. CHIEF OF POLICE	\$1,274.00	\$1,274.00	\$0.00
Matter Description (First Line): AMICO, ANGELO V. CITY OF MEDFORD	\$3,355.26	\$3,352.50	\$2.76
Matter Description (First Line): ANALETTO V. ZBA	\$22,173.21	\$22,027.50	\$145.71
Matter Description (First Line): ANTOINE V. CHIEF OF POLICE	\$2,197.10	\$2,133.00	\$64.10
Matter Description (First Line): ARBELLA V. MEDFORD	\$1,260.00	\$1,260.00	\$0.00
Matter Description (First Line): ARBELLA/DEALMEID A V. MEDFORD	\$4,509.00	\$4,509.00	\$0.00
Matter Description (First Line): ARPA	\$6,450.00	\$6,450.00	\$0.00
Matter Description (First Line): ATIYAT V. CITY OF MEDFORD	\$1,820.00	\$1,820.00	\$0.00
Matter Description (First Line): ATIYAT WAGE GARNISHMENT	\$831.00	\$831.00	\$0.00
Matter Description (First Line): AYALA V. MEDFORD	\$32,412.37	\$32,345.50	\$66.87
Matter Description (First Line): AYELE TRUSTEE PROCESS	\$837.00	\$837.00	\$0.00

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): BARTLETT V. CITY	\$8,005.57	\$7,969.00	\$36.57
Matter Description (First Line): BAYLISS V. CHIEF OF POLICE	\$2,216.10	\$2,160.00	\$56.10
Matter Description (First Line): BJ'S WHOLESALE CLUB V. CITY	\$8,519.00	\$8,479.00	\$40.00
Matter Description (First Line): BLACQUIER GRIEVANCE	\$3,797.00	\$3,797.00	\$0.00
Matter Description (First Line): BOARD OF HEALTH V. BARBARA H. SMITH	\$1,225.00	\$1,225.00	\$0.00
Matter Description (First Line): BUCKLEY V. CITY OF MEDFORD	\$12,895.63	\$12,101.00	\$794.63
Matter Description (First Line): BUILDING INSPECTOR INVESTIGATION	\$196.00	\$196.00	\$0.00
Matter Description (First Line): CABLE TV	\$7,635.00	\$7,635.00	\$0.00
Matter Description (First Line): CARDILLO V. MEDFORD	\$51,894.10	\$49,974.00	\$1,920.10
Matter Description (First Line): CASINO - SURROUNDING COMMUNITY AGREEMENT	\$2,455.00	\$2,455.00	\$0.00
Matter Description (First Line): CENTRELLA ET AL. V. BJS WHOLESALE AND MEDFORD CITY COUNCIL	\$3,249.71	\$3,175.00	\$74.71
Matter Description (First Line): CHERTOK ET AL. V. CITY	\$36,421.27	\$35,308.00	\$1,113.27
Matter Description (First Line): CLERICAL NEGOTIATIONS	\$10,286.00	\$10,266.00	\$20.00
Matter Description (First Line): COMBINED PROPERTIES, INC. 40B	\$7,086.00	\$7,048.00	\$38.00

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): COMMUNITY DEVELOPMENT BOARD (R)	\$25,033.71	\$24,735.07	\$298.64
Matter Description (First Line): CONBOY V. CITY OF MEDFORD	\$16,841.30	\$16,822.00	\$19.30
Matter Description (First Line): CONBOY V. MEDFORD/DUA	\$4,070.39	\$4,059.00	\$11.39
Matter Description (First Line): CONBOY/CIVIL SERVICE APPEAL	\$1,427.50	\$1,427.50	\$0.00
Matter Description (First Line): CONDELLI V. CHIEF OF POLICE	\$894.78	\$832.00	\$62.78
Matter Description (First Line): CONDUCT INVESTIGATION INTO PARKING DEPARTMENT	\$2,075.00	\$2,075.00	\$0.00
Matter Description (First Line): CONNORS, ET. AL V. CITY OF MEDFORD	\$5,118.50	\$5,118.50	\$0.00
Matter Description (First Line): CONSTANCE WHITE (USAA CASUALTY) V. CITY OF MEDFORD	\$1,809.81	\$1,775.00	\$34.81
Matter Description (First Line): CONTRACTS (R)	\$95,149.87	\$94,569.05	\$580.82
Matter Description (First Line): COTE V. MEDFORD - POLICE DEPT	\$2,586.73	\$2,276.00	\$310.73
Matter Description (First Line): COVID-19	\$17,984.42	\$17,977.50	\$6.92
Matter Description (First Line): CURRAN V. TRAFFIC COMMISSION	\$3,510.62	\$3,388.00	\$122.62
Matter Description (First Line): DASILVA V. CITY	\$18,725.81	\$18,669.00	\$56.81
Matter Description (First Line): DEOLIVEIRAMIRND V. MEDFORD - DPW/SNOW PLOW	\$3,554.00	\$3,554.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): DISPATCH UNION CONTRACT NEGOTIATIONS	\$8,284.24	\$8,276.00	\$8.24
Matter Description (First Line): DPW/ARBITRATION/ALL AFFECTED EMPLOYEES	\$2,253.00	\$2,253.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/D RUG TESTS	\$1,048.00	\$1,048.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/GOOD FRIDAY GRIEVANCE	\$336.00	\$336.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/MALERBA AND SMITH	\$81.00	\$81.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/S CARAMUZZO GRIEVANCE	\$392.00	\$392.00	\$0.00
Matter Description (First Line): DURBIN V. CITY OF MEDFORD	\$1,316.00	\$1,316.00	\$0.00
Matter Description (First Line): DURHAM V. MEDFORD	\$12,923.00	\$12,923.00	\$0.00
Matter Description (First Line): ENERGY/SOLAR CONTRACTING AND PROJECTS	\$28,459.01	\$28,440.00	\$19.01
Matter Description (First Line): ENGLEHUTT CONDOS V. CITY	\$1,414.00	\$1,414.00	\$0.00
Matter Description (First Line): EXAVIER V. CHIEF OF POLICE	\$4,971.29	\$4,913.00	\$58.29
Matter Description (First Line): FAGONE V. CITY	\$5,212.00	\$5,212.00	\$0.00
Matter Description (First Line): FARGO V. MEDFORD	\$8,052.58	\$7,942.00	\$110.58

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): FIRE DEPARTMENT INVESTIGATION	\$8,582.00	\$8,582.00	\$0.00
Matter Description (First Line): FIRE DEPARTMENT SICK USE REVIEW	\$10,231.00	\$10,231.00	\$0.00
Matter Description (First Line): FIRE/ ZIOBRO/ IOD/ ARBRITRATION	\$2,850.50	\$2,850.50	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/A HERN GRIEVANCE	\$3,009.05	\$2,996.00	\$13.05
Matter Description (First Line): FIRE/ARBITRATION/A HERN SICK TIME DISCIPLINE	\$4,158.00	\$4,158.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/A HERN TERMINATION	\$280.00	\$280.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/D AVIS SICK NOTE	\$486.00	\$486.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/D UNN TERMINATION	\$1,111.00	\$1,111.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/H ALLORAN DISCIPLINE	\$19,287.89	\$19,161.00	\$126.89
Matter Description (First Line): FIRE/ARBITRATION/H ALLORAN/DEMOTION	\$23,408.47	\$23,338.00	\$70.47
Matter Description (First Line): FIRE/ARBITRATION/M CELENY GRIEVANCE	\$644.00	\$644.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/O T AND DETAIL HIRING	\$13,419.18	\$13,412.00	\$7.18

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): FIRE/ARBITRATION/P ROMOTIONAL PAY STEP	\$3,699.00	\$3,699.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/SI CK LEAVE LETTERS	\$13,797.62	\$13,787.00	\$10.62
Matter Description (First Line): FIRE/ARBITRATION/SI CK MEMO	\$5,574.00	\$5,574.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/W HITE DISCIPLINE	\$28,635.40	\$28,620.00	\$15.40
Matter Description (First Line): FIRE/CIVIL SERVICE/DUNN APPEAL	\$1,596.00	\$1,596.00	\$0.00
Matter Description (First Line): FIRE/CIVIL SERVICE/HALLORAN APPEAL	\$3,971.00	\$3,971.00	\$0.00
Matter Description (First Line): FIRE/CIVIL SERVICE/MCDONALD INVESTIGATION	\$4,536.00	\$4,536.00	\$0.00
Matter Description (First Line): FIRE/DLR/ULP/CIVIL SERVICE EXAMS	\$702.00	\$702.00	\$0.00
Matter Description (First Line): FIRE/ULP/AMBULANC E SERVICES	\$504.00	\$504.00	\$0.00
Matter Description (First Line): FIRE/ULP/OT DETAIL BYPASS	\$388.00	\$388.00	\$0.00
Matter Description (First Line): FIREFIGHTERS LOCAL 1032 V. CITY OF MEDFORD	\$20,749.03	\$20,682.00	\$67.03
Matter Description (First Line): FORCELLATI V. MEDFORD	\$6,652.19	\$6,542.00	\$110.19
Matter Description (First Line): G & R CONSTRUCTION, INC. V. CITY OF MEDFORD	\$56,124.90	\$55,220.00	\$904.90

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): GALE V. MEDFORD	\$6,275.61	\$6,225.00	\$50.61
Matter Description (First Line): GEICO A/S/O WOLDEMARIAM V. CITY	\$3,220.00	\$3,220.00	\$0.00
Matter Description (First Line): GEICO INSURANCE CO. AS SUBROGEE FOR NGUYEN V. CITY OF MEDFORD	\$3,343.00	\$3,343.00	\$0.00
Matter Description (First Line): GENERAL LABOR SERVICES (R)	\$190,124.62	\$162,503.44	\$27,621.18
Matter Description (First Line): GENERAL LEGAL SERVICES(R)	\$297,818.55	\$289,974.79	\$7,843.76
Matter Description (First Line): GIGANTE V. STATE HUMAN RESOURCES DIVISION	\$375.00	\$375.00	\$0.00
Matter Description (First Line): GILLIS V. CITY CLERK	\$3,411.08	\$3,383.00	\$28.08
Matter Description (First Line): GIORDANO V. MEDFORD	\$3,506.02	\$3,484.00	\$22.02
Matter Description (First Line): GUIRY V. CITY	\$4,712.00	\$4,712.00	\$0.00
Matter Description (First Line): HEALTH DEPARTMENT INVESTIGATION	\$8,186.14	\$8,175.00	\$11.14
Matter Description (First Line): HEALTH INSURANCE COVERAGE	\$4,325.00	\$4,325.00	\$0.00
Matter Description (First Line): HOWARD, ET AL. V. CITY	\$36,602.34	\$36,238.75	\$363.59
Matter Description (First Line): HUETHER V. BOARD OF HEALTH	\$1,385.25	\$1,378.00	\$7.25
Matter Description (First Line): INSPECTORS/MALERB A/ARBITRATION	\$644.00	\$644.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): JEAN MICHEL BYPASS APPEAL	\$1,600.00	\$1,600.00	\$0.00
Matter Description (First Line): JOHN DOE V. MEDFORD PUBLIC SCHOOLS	\$6,474.67	\$4,702.50	\$1,772.17
Matter Description (First Line): JUFFRE V. NATIONAL GRID	\$4,766.00	\$4,766.00	\$0.00
Matter Description (First Line): KODIS V. MEDFORD PS	\$3,835.00	\$3,835.00	\$0.00
Matter Description (First Line): LIBRARY NEGOTIATIONS	\$8,953.24	\$8,906.00	\$47.24
Matter Description (First Line): LINEHAN V. CITY OF MEDFORD	\$6,506.88	\$6,370.00	\$136.88
Matter Description (First Line): LOCAL 25 - CLERICAL	\$7,037.00	\$7,037.00	\$0.00
Matter Description (First Line): LOCAL 25 - DEPARTMENT HEADS	\$29,895.80	\$29,778.00	\$117.80
Matter Description (First Line): LOCAL 25 - DPW	\$72,261.14	\$70,268.50	\$1,992.64
Matter Description (First Line): LOCAL 25 - PARKING DEPARTMENT	\$16,273.69	\$16,217.00	\$56.69
Matter Description (First Line): LOCAL 25 - SUPERINTENDENTS AND INSPECTORS	\$14,540.00	\$14,499.00	\$41.00
Matter Description (First Line): LOCAL 25 (BUILDING INSPECTORS)/DLR/UL P/LOCATION- TRACKING TABLETS	\$1,670.00	\$1,670.00	\$0.00
Matter Description (First Line): LOCAL 25 (DPW)/DLR/ULP/DRUG TEST	\$8,558.00	\$8,558.00	\$0.00
Matter Description (First Line): LOCAL 25 DEPT. HEADS/ULP/FORMER IT DIRECTOR	\$18,009.73	\$18,002.00	\$7.73

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): LOCAL 25 DPW/AAA/FOREMAN SENIORITY GRIEVANCE 27507	\$7,050.00	\$7,050.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/AAA/MCKENNA TERMINATION	\$20,572.00	\$20,572.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/KERGER MEO III PROMOTION GRIEVANCE	\$9,190.00	\$9,190.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/ULP/NESTOR WARNINGS	\$338.00	\$338.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/ULP/SNOW PLOW INVESTIGATION	\$52.00	\$52.00	\$0.00
Matter Description (First Line): LOCAL 25/ARBITRATION/DINNER BREAK	\$2,492.00	\$2,492.00	\$0.00
Matter Description (First Line): LOCAL 25/ULP/PROBATIONARY PERIOD	\$783.00	\$783.00	\$0.00
Matter Description (First Line): LOCAL 25/ULP/TIME RECORDING POLICY	\$594.00	\$594.00	\$0.00
Matter Description (First Line): LODATO V. CITY OF MEDFORD	\$1,680.00	\$1,680.00	\$0.00
Matter Description (First Line): M. DISTASIO EXCAVATION CONTRACTORS BID PROTEST	\$1,148.00	\$1,148.00	\$0.00
Matter Description (First Line): MAIN STREET (RT. 38) MASSDOT PROJECT	\$4,088.00	\$4,088.00	\$0.00
Matter Description (First Line): MANGIASI APPEAL- MEDFORD POLICE	\$6,552.00	\$6,552.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): MARIJUANA HOST COMMUNITY AGREEMENTS	\$3,484.50	\$3,484.50	\$0.00
Matter Description (First Line): MAYOR V. MIAA	\$1,282.50	\$1,282.50	\$0.00
Matter Description (First Line): MCCORMACK AVENUE SALE	\$1,809.00	\$1,809.00	\$0.00
Matter Description (First Line): MCDONALD V. CHIEF OF POLICE	\$305.00	\$305.00	\$0.00
Matter Description (First Line): MEDFORD FIREFIGHTERS LOCAL 1032	\$168,969.76	\$168,197.50	\$772.26
Matter Description (First Line): MEDFORD POLICE CHIEF V. TASLIMI	\$2,410.69	\$2,375.00	\$35.69
Matter Description (First Line): MEDFORD POLICE PATROLMEN'S ASSOCIATION	\$1,160.00	\$1,160.00	\$0.00
Matter Description (First Line): MEDFORD SCHOOL INVESTIGATION	\$19,432.32	\$19,253.00	\$179.32
Matter Description (First Line): MEDFORD SQUARE DEVELOPMENT	\$42,439.00	\$42,439.00	\$0.00
Matter Description (First Line): MEDFORD v. KATERINA BELL	\$2,604.00	\$2,604.00	\$0.00
Matter Description (First Line): MEDFORD v. TED MARTINEZ	\$4,424.00	\$4,424.00	\$0.00
Matter Description (First Line): MEDFORD ZBA AND DIV FELLSWAY, LLC (970 FELLSWAY, LLC)	\$30,862.25	\$28,800.00	\$2,062.25
Matter Description (First Line): MICHAEL DUPONT ET AL V. CITY OF MEDFORD, ET AL.	\$22,293.52	\$20,589.00	\$1,704.52

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): MILANO V. CITY	\$1,680.00	\$1,680.00	\$0.00
Matter Description (First Line): MPPA/ARBITRATION/ RICCIARDI/IOD	\$27.00	\$27.00	\$0.00
Matter Description (First Line): MYSTIC GREEN CONDO UNIT 21	\$292.50	\$292.50	\$0.00
Matter Description (First Line): MYSTIC, LLC COMPREHENSIVE PERMIT	\$54,052.18	\$51,907.50	\$2,144.68
Matter Description (First Line): NATIONAL GRID V. CITY OF MEDFORD, ET AL.	\$6,919.04	\$6,899.00	\$20.04
Matter Description (First Line): NEW YORK CAPITAL INVESTMENT V. MEDFORD COMMUNITY DEVELOPMENT BOARD	\$49,935.39	\$47,082.00	\$2,853.39
Matter Description (First Line): OPEN MEETING LAW (R)	\$7,543.20	\$7,508.19	\$35.01
Matter Description (First Line): PARKING DEPARTMENT INVESTIGATION	\$6,864.00	\$6,864.00	\$0.00
Matter Description (First Line): PARKWAY PLAZA CONDOMINIUM V. TARANTI ET AL	\$130.00	\$130.00	\$0.00
Matter Description (First Line): PAYROLL	\$24,832.67	\$24,773.00	\$59.67
Matter Description (First Line): PEC NEGOTIATIONS	\$7,943.02	\$7,934.50	\$8.52
Matter Description (First Line): PEC/ARBITRATION/OP T-OUT PAYMENT	\$24,730.22	\$24,700.00	\$30.22
Matter Description (First Line): PIERRE V. MEDFORD - POLICE DEPT	\$1,450.00	\$1,450.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): PLYMOUTH ROCK A/S/O MIKE'S LANDSCAPING V. CITY	\$3,236.00	\$3,236.00	\$0.00
Matter Description (First Line): POLICE PATROL NEGOTIATIONS	\$54,848.20	\$54,713.00	\$135.20
Matter Description (First Line): POLICE STATION PROJECT	\$1,030.00	\$1,030.00	\$0.00
Matter Description (First Line): PRONJA V. MEDFORD - DPW	\$1,042.00	\$1,042.00	\$0.00
Matter Description (First Line): PUBLIC RECORDS (R)	\$19,025.56	\$18,908.94	\$116.62
Matter Description (First Line): PUOPOLO V. CITY	\$1,738.00	\$1,738.00	\$0.00
Matter Description (First Line): RANDAZZO V. CHIEF OF POLICE	\$2,884.00	\$2,884.00	\$0.00
Matter Description (First Line): REAL ESTATE (R)	\$14,914.82	\$14,412.63	\$502.19
Matter Description (First Line): REFAH V. ZBA	\$33,345.52	\$33,182.00	\$163.52
Matter Description (First Line): SARRO V. CITY	\$3,628.00	\$3,628.00	\$0.00
Matter Description (First Line): SEELEY V. POLICE CHIEF	\$4,747.50	\$4,747.50	\$0.00
Matter Description (First Line): SHAIKH V. CITY	\$4,228.87	\$4,200.00	\$28.87
Matter Description (First Line): SMALL CELL WIRELESS	\$17,496.67	\$17,460.00	\$36.67
Matter Description (First Line): SWEENEY V. CITY	\$7,098.00	\$7,098.00	\$0.00
Matter Description (First Line): TASSINARI V. CITY	\$16,823.65	\$16,713.00	\$110.65
Matter Description (First Line): TEAMSTERS DEPARTMENT HEAD CERT.	\$3,546.50	\$3,530.00	\$16.50

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): TEAMSTERS LOCAL 25 V. CITY OF MEDFORD (CONSOLIDATED CASES)	\$83,591.47	\$82,822.50	\$768.97
Matter Description (First Line): THEORY WELLNESS HCA	\$7,245.00	\$7,245.00	\$0.00
Matter Description (First Line): USAA V. CITY	\$1,456.00	\$1,456.00	\$0.00
Matter Description (First Line): VERMONT MUTUAL V. CITY	\$1,728.72	\$1,709.00	\$19.72
Matter Description (First Line): WEBBER V. MEDFORD - DPW/TREE ISSUE	\$400.00	\$400.00	\$0.00
Matter Description (First Line): WILLIAM F. O'BRIEN V. CITY OF MEDFORD	\$3,753.92	\$3,724.00	\$29.92
Matter Description (First Line): WOLK V. RISE TOGETHER, LLC (ZBA)	\$16,938.00	\$16,938.00	\$0.00
Matter Description (First Line): ZONING BOARD OF APPEALS (R)	\$20,934.85	\$20,844.74	\$90.11
Medford	\$2,394,234.11	\$2,334,731.25	\$59,502.86
Grand Totals:	\$2,394,234.11	\$2,334,731.25	\$59,502.86

September 14, 2026

Via Email Only (mnazarian@medford-ma.gov)

Nina Nazarian
Chief of Staff – Office of Mayor Breanna Lungo-Koehn
City of Medford

Ms. Nazarian:

Pursuant to your request, please find a summary of all legal work billed by our office since May 2026 below:

Matter	Hours	Total
Onboarding and review of open matters	13.5	\$3,712.50
CBA Negotiations and Policy Review	14.5	\$3,987.50
FF [REDACTED] 111F	4.75	\$1,306.25
Cpt [REDACTED] Arbitration Award (AAA 8624)	0.5	\$137.50
OT/Detail Arbitration (AAA 0076)	1.5	\$412.50
FF [REDACTED] 111F Arbitration (AAA 4159)	0.25	\$68.75
Flat Fee (Monthly)	2 mo.	\$1,100.00

If you have any questions regarding the foregoing or would like our firm to periodically provide status updates in this manner pertaining to the total legal costs by matter, please let me know.

Sincerely,

/s/Richard Massina
Richard Massina, Esq.
rich@cliffordkennylaw.com

Thru 09/08/2026

	<u>Date</u>	<u>Ref #</u>	<u>Stmt #</u>	<u>Fee Amount</u>	<u>Hours</u>	<u>Expense Amount</u>	<u>Advance Amount</u>	<u>Payment Amount</u>	<u>Apply to Stmt #</u>	<u>Bill Total</u>	<u>Balance Due</u>
770.0006M AXA XL											
RE: * [REDACTED] et al. vs. City of Medford, et al.											
	Subtotal			48,709.50	231.90		1,442.50	45,346.00		50,152.00	4,806.00

GRAND TOTALS											
	<u>Date</u>	<u>Ref #</u>	<u>Stmt #</u>	<u>Fee Amount</u>	<u>Hours</u>	<u>Expense Amount</u>	<u>Advance Amount</u>	<u>Payment Amount</u>	<u>Apply to Stmt #</u>	<u>Bill Total</u>	<u>Balance Due</u>
				48,709.50	231.90		1,442.50	45,346.00		50,152.00	4,806.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-54529 [REDACTED] v City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$5,028.00	\$0.00	\$5,028.00
L200	\$55.00	\$0.00	\$55.00
Total Fees by Task Code	\$5,083.00	\$0.00	\$5,083.00
Total	\$5,083.00	\$0.00	\$5,083.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-54206 [REDACTED] v. Medford Public

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$1,127.50	\$3,025.00	\$4,152.50
L200	\$0.00	\$55.00	\$55.00
L400	\$27.50	\$0.00	\$27.50
Total Fees by Task Code	\$1,155.00	\$3,080.00	\$4,235.00
Total	\$1,155.00	\$3,080.00	\$4,235.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-53954 [REDACTED] v. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$1,045.00	\$797.50	\$1,842.50
L200	\$903.00	\$3,767.50	\$4,670.50
L300	\$27.50	\$0.00	\$27.50
L400	\$110.00	\$1,375.00	\$1,485.00
Total Fees by Task Code	\$2,085.50	\$5,940.00	\$8,025.50
Total	\$2,085.50	\$5,940.00	\$8,025.50

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-53546 [REDACTED] cv. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$5,419.00	\$0.00	\$5,419.00
L200	\$82.50	\$0.00	\$82.50
Total Fees by Task Code	\$5,501.50	\$0.00	\$5,501.50
Total	\$5,501.50	\$0.00	\$5,501.50

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-51118 [REDACTED] v. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$302.50	\$9,267.50	\$9,570.00
L200	\$0.00	\$550.00	\$550.00
Total Fees by Task Code	\$302.50	\$9,817.50	\$10,120.00
Total	\$302.50	\$9,817.50	\$10,120.00

O'Hagan Meyer LLC

Budgets - Fees and Expenses by Code from: 1/1/2020 through 9/9/2026

1748-44421 [REDACTED] v. City of Medford

Task Code	Unbilled	Billed	Total
Fees by Task Code			
L100	\$0.00	\$13,805.00	\$13,805.00
L200	\$0.00	\$1,100.00	\$1,100.00
Total Fees by Task Code	\$0.00	\$14,905.00	\$14,905.00
Total	\$0.00	\$14,905.00	\$14,905.00

Peabody & Arnold
Billed/Paid Amounts
FY20-FY26

<u>Matter Name</u>	<u>Billed</u>	<u>Receipts</u>
207396- [REDACTED] [REDACTED] v. City of Medford. 0006856050	\$64,720.75	\$64,653.50
207661 - [REDACTED] [REDACTED] v. City of Medford	\$86,507.35	\$84,633.60
207889 - [REDACTED] v. Medford Vocational Technical High School	\$14,463.00	\$14,463.00
208359 - [REDACTED] v. City of Medford	\$24,703.50	\$24,703.50
208497 - [REDACTED] [REDACTED] v. Medford Public Schools	\$5,144.50	\$5,144.50
208531 - [REDACTED] v. Medford Public Schools	\$16,023.50	\$16,023.50
208553 - [REDACTED] v. Medford Public Schools	\$10,608.50	\$10,608.50
208661 - [REDACTED] v. City of Medford	\$17,636.50	\$17,636.50
208746 - [REDACTED] v. City of Medford	\$9,535.23	\$9,535.23
209290 - [REDACTED] v. Medford Public Schools	\$8,907.00	\$8,907.00
210087 - City of Medford - General Advice	\$2,455.00	\$1,668.00

Peabody & Arnold
Billed/Paid Amounts
Prior to FY20

<u>Matter Name</u>	<u>Billed</u>	<u>Receipts</u>
202533 - [REDACTED] v. Medford Public Schools, Claim No: 3990206	\$9,583.50	\$9,583.50
205637 - [REDACTED] v. City of Medford	\$18,886.00	\$18,886.00
69666 - [REDACTED] v. City of Medford	\$15,196.87	\$15,196.87
75715 - [REDACTED] v. City of Medford	\$8,036.65	\$6,314.15
84815 - [REDACTED] v. City of Medford	\$14,875.15	\$14,875.15
85367 - [REDACTED] v. City of Medford Public	\$19,513.48	\$19,513.48
87746 - [REDACTED] v. City of Medford	\$22,527.29	\$22,527.29
87932 - [REDACTED] [REDACTED] v. City of Medford	\$42,327.90	\$42,327.90
90831 - [REDACTED] v. The City of Medford	\$9,289.35	\$9,289.35
91704 - [REDACTED] [REDACTED] v. City of Medford	\$11,812.70	\$11,812.70
91969 - [REDACTED] [REDACTED] [REDACTED] v. Paul F. Mochi, individual	\$56,460.97	\$56,460.97

92274 - [REDACTED] v. City of Medford	\$23,917.99	\$23,917.99
92382 - [REDACTED] [REDACTED] v. Medford Public	\$3,769.20	\$3,769.20
97256 - [REDACTED] [REDACTED] v. City of Medford	\$7,274.10	\$7,274.10
200897 - [REDACTED] v. City of Medford	\$117,948.77	\$114,508.02
201250 - [REDACTED] [REDACTED] v. City of Medford	\$31,712.75	\$28,847.50
202792 - [REDACTED] [REDACTED] v. City of Medford	\$2,695.00	\$2,695.00
203065 - [REDACTED] v. City of Medford - Medford	\$115,326.00	\$115,302.50

Matter Number	Matter Name	Fees Billed	Costs Billed	Total Billed
121311-000003	[REDACTED]*	\$170,858.50	\$25,249.88	\$196,108.38
121311-000004	[REDACTED]*	\$82,618.50	\$11,388.43	\$94,006.93
121311-000005	[REDACTED] et al.**	\$282,863.00	\$55,441.25	\$338,304.25
	Totals	\$536,340.00	\$92,079.56	\$628,419.56

These are the total bills from August 29, 2024 to present.

High level summary of notable information:

1. We estimate demands for these cases were close to **\$2 million**. Moreover, had the City originally settled these matters, which we believe were mostly frivolous claims, **we believe doing so would have led to additional litigation, with demands totaling millions more.**
2. Because we went through the litigation process and completed "discovery", the City was able to use the information and evidence obtained to negotiate the \$250k demand in the Conboy matter down to \$19k. Similarly, in the Fargo et al. matter, where the demand was estimated to be as high as \$1.5 million, we were able to negotiate the matter down to \$28k.
3. We were aware that individuals were actively encouraging employees to file similar lawsuits, making it even more important for the City to vigorously defend these cases with the most experienced attorneys in the field.
4. We negotiated the attorney's fees from \$900-\$1,000 per hour to \$660 per hour.
5. We confirmed that if Seyfarth Shaw, LLP had two or more attorney's present, the City would only be charged for one attorney at the hourly rate.
6. After these lawsuits were filed, the City implemented timesheets to better track employees' hours and address the issues raised by these claims. For example, each of the claims described above included an allegation that the individual did not take a one-hour lunch break each day for three years and sought triple damages for the alleged violations.

*One plaintiff

**Eight plaintiffs, however settlement was ultimately with 7 plaintiffs

Nina Nazarian

From: Nina Nazarian
Sent: Sunday, September 13, 2026 8:52 AM
To: City Council Members
Cc: Breanna Lungo-Koehn
Subject: Response to Council 26-142B

Dear President Bears and City Councilors:

We are writing pursuant to item 6 in 26-142B, where the City Council requested a list and total estimated cost of all budgeted legal expenses for the FY27 city budget in department budgets other than the Law Department.

For the FY27 budget, legal expenses may be charged to the following budgets, including but not limited to:

- Department of Public Works - \$45,000
- Fire Department - \$95,000 (we are in contract negotiations where we are not in other units)
- Law Department - \$156,000 for retainer
- Medford Community Media - \$10,000
- Police Department - \$40,000
- Planning, Development and Sustainability - \$50,000

As for the estimated amounts, well that part is difficult to answer since legal costs are not particularly predictable. For example, we do not know how many grievances we are going to have in any given year, how arduous cable negotiations may be, nor do we know how many appeals will be filed against the Zoning Board, etc. That said, we are providing a number for each, to the best of our ability, but the amounts could differ vastly from the above.

Sincerely,

Nina

--

Nina Nazarian
Chief of Staff | Office of Mayor Breanna Lungo-Koehn
City of Medford
85 George P. Hassett Drive, Medford, MA 02155
781-393-2408
nnazarian@medford-ma.gov
she/her/hers

Please note: The Commonwealth of Massachusetts considers most electronic communications to and from public employees to be public records and disclosable under the Massachusetts Public Records Law and its regulations. *Please consider the environment before printing this email.*